

Court No. - 40

Case :- WRIT - C No. - 16589 of 2023

Petitioner :- Jamshed Ali Tyagi

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ajay Kr. Srivastava, Sanjay Kr. Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State respondents and Shri N.K. Tiwari, learned counsel for respondent no.4 and 5.

2. Present writ petition is preferred seeking a mandamus commanding the District Magistrate, Muzaffar Nagar to consider and decide the petitioner's representation dated 0309.2021 for conducting an inquiry qua certain harassment of petitioner caused by Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd.-fifth respondent and further provide the regular electricity bill to petitioner for the Electricity Connection No.1341364000 after 04.11.2020 in accordance with law.

3. Learned counsel for the respondents raised preliminary objection qua maintainability of the writ petition on the ground that petitioner made certain complaint, wherein, the Executive Engineer has considered the complaint of the petitioner and submitted report on 25.02.2023 to the District Magistrate, Muzaffar Nagar, which is appended as Annexure no.9 to the writ petition. The matter relates to electricity theft. He submits that the Electricity Act 2003 and Electricity Supply Code 2005 are self contained, wherein, petitioner has got efficacious remedy to represent before the Competent Authority for getting the reprieve. Instead of availing the remedy provided under the Electricity Act 2003 and Electricity Supply Code 2005, the petitioner is seeking a direction to the District Magistrate, Muzaffar Nagar, who has no locus in providing the relief as has been prayed for.

4. We have perused the record and finds substance in the objection so raised by counsel for the respondents. Once efficacious alternative remedy is available to the petitioner, then

there is no reason or occasion to bypass the same. However we ask the petitioner to move an appropriate application before the competent authority ventilating his grievance. In case any such representation is moved within a week's time, we hope and trust that the same be dealt with and decided, in accordance with law, expeditiously.

5. With these observations, the writ petition is ***disposed of***.

Order Date :- 17.5.2023

A. Pandey